



STATE BANK OF PAKISTAN (AMENDMENT) ORDINANCE, 2002

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STATE BANK OF PAKISTAN (AMENDMENT) ORDINANCE, 2002

ORDINANCE CX OF 2002

An Ordinance further to amend the State Bank of Pakistan Act, 1956

WHEREAS it is expedient further to amend the State Bank of Pakistan Act, 1956 (XXXIII of 1956) for the purposes hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:---

1. Short title and commencement.-(1) This Ordinance may be called the State Bank of Pakistan (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of section 9B, Act XXXIII of 1956. In the State Bank of Pakistan Act, 1956 (XXXIII of 1956), thereafter referred to as the said Act, in section 9B, after subsection (5), the following new subsection shall be added, namely:-

"(6) In carrying out its assigned functions of coordinating fiscal, monetary and exchange rate policies and for ensuring constituency among macro economic, targets of growth, inflation and fiscal, monetary and external accounts as laid down in subsections (1), (2), (3), (4) and (5), the Coordination Board shall not take any treasure that would adversely affect the autonomy of the State Bank of Pakistan as provided in this Act.

3. Amendment of section 10, Act XXXIII of 1956. In the said Act, in section 10, for sub-section (3), the following shall be substituted, namely:-

"(3) Subject to subsection (11), the Governor shall be appointed by the President for a term of three years and on such salary and terms and conditions of service as the President may determine, except that neither the salary of the Governor nor his other terms and conditions of service shall be varied to his disadvantage after his appointment:

Provided that the Governor shall be eligible for re-appointment for another term of three years:

Provided further that no person shall hold the office of the Governor after attaining the age of sixty-five years."

4. Amendment of section 15, Act XXIII of 1956. In the said Act, in sub-section (1) of section 15, for the word "Federal Government" the word "President" shall be substituted.

5. Substitution of section 22, Act XXXIII of 1956. In the said Act for section 22 the following shall be substituted, namely:-

"22. Service charges.-(1) The Bank shall make public from time to time the standard service charges at which it is prepared to provide financial accommodation to the borrowing entities.

(2) In respect of finance provided by the Bank it may determine, from time to time, the terms and conditions either generally or specially."
